

TENTATIVE RULING

Case: **Baker v. Yolo County**
Case No. CV2025-0917

Hearing Date: **June 4, 2026** **Department Thirteen** **9:00 a.m.**

Motion for judgment:

Real parties in interest Zipline International Inc. and Yolo Land and Cattle Company's request for judicial notice (filed May 28, 2026) is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court's determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 ["Any matter to be judicially noticed must be relevant to a material issue"].)

Real parties in interest's motion for judgment is **GRANTED**. (Code Civ. Proc., § 1094.) Petitioner Mark Baker failed to exhaust his administrative remedies before filing the first amended petition, which challenges the October 9, 2025, decision. (*McCann v. City of San Diego* (2021) 70 Cal.App.5th 51, 76-77; Yolo County Code, § 8-2.225; see also Pub. Resources Code, § 21177; Pinkston decl., ¶¶ 5-7, Exhibit C; FAP, ¶¶ 1, 14, 24-27, & 34-35.) Therefore, the Court finds that petitioner cannot proceed with this action. (See *Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal.App.4th 577, 589 [stating "the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion"].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to augment the record:

As the Court is granting real parties in interest's motion for judgment, petitioner Mark Baker's motion to augment administrative record is **DENIED AS MOOT**. (Pub. Resources Code, § 21167.6.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Given the Court's ruling on real parties in interest's motion for judgment, the case management conference is **VACATED**.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance
Authority et al.**

Case No. CV2024-2614

Hearing Date: **June 4, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, plaintiff Armond Sarkis' motion to strike defendants Yolo County Public Agency Risk Management Insurance Authority and Jill Renee Perez's memorandum of costs as premature, or, in the alternative, to tax costs is **CONTINUED** to **July 28, 2026**, at 9:00 a.m. in Department Fourteen.